ORDINANCE NO. _____

An Ordinance Vacating an Alley Beginning at the Southwest Corner of Lot 1, Block 10 of the Original Town of Rector, Arkansas, and due North along the west boundary line of Lot 1, 2 and 3, to the Northwest Corner of Lot 3, thence due West 20 feet to the Northeast Corner of Lot 10, thence due South along the east boundary line of Lot 10, 11 and 12, to the Southeast Corner of Lot 12, thence East 20 feet to the Southwest Corner of Lot 1, the point of beginning. Authorizing the City Recorder to Record said Ordinance in the Deed Records of the County.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT:

WHEREFORE, a petition was duly filed with the City Council of the City of Rector, Arkansas, on the ____ day of _____, 2005, asking the City Council to vacate and abandon all that portion of an alley designated an alley Beginning at the Southwest Corner of Lot 1, Block 10 of the Original Town of Rector, Arkansas, and due North along the west boundary line of Lot 1, 2 and 3, to the Northwest Corner of Lot 3, thence due West 20 feet to the Northeast Corner of Lot 10, thence due South along the east boundary line of Lot 10, 11 and 12, to the Southeast Corner of Lot 12, thence East 20 feet to the Southwest Corner of Lot 1, the point of beginning, now appearing of record in Deed Record _____ at page _____ in the office of the Circuit Clerk and Ex-Officio Recorder for the Eastern District of Clay County, Arkansas.

WHEREAS, after due notice as required by law, the City Council has, at the time and place mentioned in the notice, heard all persons desiring to be heard on the question and has ascertained that an alley or the portion thereof, hereinbefore described, has heretofore been dedicated to the public use as an alley herein described; that said alley has not been actually used by the public generally for a period of at least five years subsequent to the filing of the plat; that all the owner of the property abutting upon the portion of an alley to be vacated has filed with the Council its written consent to such abandonment; and the public interest and welfare will not be adversely affected by the abandonment of such alley.

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT:

SECTION 1. The City of Rector, Arkansas, hereby releases, vacates and abandons all its rights, together with the rights of the public generally, in and to an alley designated as follows:

> Beginning at the Southwest Corner of Lot 1, Block 10 of the Original Town of Rector, Arkansas, and due North along the west boundary line of Lot 1, 2 and 3, to the Northwest Corner of Lot 3, thence due West 20 feet to the Northeast Corner of Lot 10, thence due South along the east boundary line of Lot 10, 11 and 12, to the Southeast Corner of Lot 12, thence East 20 feet to the Southwest Corner of Lot 1, the point of beginning.

SECTION 2. A copy of the ordinance duly certified by the City Recorder shall be filed in the Office of the Circuit Clerk and Ex-Officio Recorder of the county and recorder in the deed records for the Eastern District of Clay County.

SECTION 3. This ordinance shall take effect and be in force from and after its passage.

Passed and approved by the City Council of the City of Rector, this 6th day of June, 2005.

Ron Kemp, Mayor

Attest:

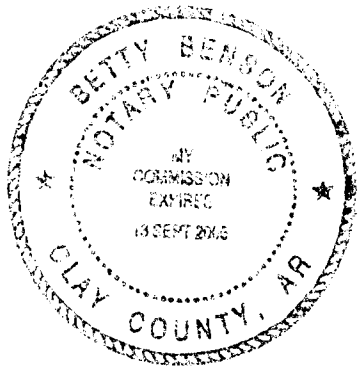
City Clerk

State of Ark.
County of Clay

Acknowledge before me this 6th day of June 2005

Betty Benson

My Commission Expire 9-13-2005



NOTICE OF HEARING

Notice is hereby given that there has been filed in the Office of the City Recorder, Rector, Arkansas, a petition purporting to be signed by all the abutting land owner by and through its attorney, C. Joseph Calvin, to vacate a certain alley within the City of Rector, Arkansas.

The petitioner states that it is the sole abutting land owner and that the said alley has not been used for a period of five years from the date of this notice.

> Beginning at the Southwest Corner of Lot 1, Block 10 of the Original Town of Rector, Arkansas, and due North along the west boundary line of Lot 1, 2 and 3, to the Northwest Corner of Lot 3, thence due West 20 feet to the Northeast Corner of Lot 10, thence due South along the east boundary line of Lot 10, 11 and 12, to the Southeast Corner of Lot 12, thence East 20 feet to the Southwest Corner of Lot 1, the point of beginning.

Petitioner: First United Methodist Church

The City Council of the City of Rector has set the 6th day of June, 2005, the regular scheduled City Council Meeting, for a hearing on the above styled matter.

Dated: May 11, 05

City Recorder

IN THE MATTER OF THE VACATING OF AN
ALLEY IN THE CITY OF RECTOR, ARKANSAS
LOCATED IN THE ORIGINAL TOWN OF RECTOR

Comes now the petitioner, First United Methodist Church, by and through its attorney, C. Joseph Calvin, and for his relief requests that the City of Rector vacate a certain alley within the city limits. The petitioner state that it is the sole abutting landowner on each side of the proposed property and that said alley has not been used for a period of five years from the date of this petition.

> Beginning at the Southwest Corner of Lot 1, Block 10 of the Original Town of Rector, Arkansas, and due North along the west boundary line of Lot 1, 2 and 3, to the Northwest Corner of Lot 3, thence due West 20 feet to the Northeast Corner of Lot 10, thence due South along the east boundary line of Lot 10, 11 and 12, to the Southeast Corner of Lot 12, thence East 20 feet to the Southwest Corner of Lot 1, the point of beginning.

WHEREFORE, petitioner prays that it be granted an ordinance vacating the above described alley and further that the ordinance be filed with the clerk of said county and that ownership of said alley shall revert to the abutting land owner to the center of said alley.

DATED: May 11, 2005

C. JOSEPH CALVIN
Attorney at Law
P.O. Box 196
201 East Ninth Street
Rector, Arkansas 72461
Phone (870) 595-3504

Attorney for the Petitioner,
First United Methodist Church

STATE OF ARKANSAS
COUNTY OF CLAY

Subscribed and sworn to before me this 11th day of May, 2005.

CINDY BUCK NOTARY PUBLIC My Commission Expires 1-25-2013 CLAY COUNTY, ARKANSAS

Notary Public

My commission expires: 1-25-2013

Plan of the town
RECTOR ARKANSAS.
CLAY COUNTY

WITH PHILIPS, STEWART, HARBERT AND CASE
And SOUTHWESTERN IMPROVEMENT ASSOCIATIONS ADDITIONS

